

Calendar Line 2

Case Name: *Steer v. Town of Los Gatos, et al.*
Case No.: 22CV394907

Before the Court is the motion of Real Parties in Interest Daran Goodsell and Mark Von Kaenel (the “Von Kaenel Parties”) to dismiss the Petition for Peremptory Writ of Mandate and Complaint for Declaratory and Injunctive Relief as moot. The motion is unopposed. As discussed below, the Court GRANTS the motion to dismiss.

I. Background

Petitioner Alison Steer (“Steer”) filed this action on March 1, 2022. The Petition challenges the Town of Los Gatos’s (the “Town”) approval of Lot Line Adjustment No. M-20-012 (the “2021 Lot Line Adjustment”), which sought to reconfigure three parcels near 17200 Los Robles Way in Los Gatos. The Petition pleads three theories (abuse of discretion under the Los Gatos Municipal Code; lack of substantial evidence under the Subdivision Map Act; and violation of CEQA) and seeks a peremptory writ of mandate together with declaratory and injunctive relief. (Req. for Judicial Notice (“RJN”), Ex. 1.)

After Steer filed this action, the Town, over Steer’s objection, obtained a stay so it could consider a revised lot line adjustment application. The Town subsequently approved a revised lot line adjustment, No. M-23-01 (the “2023 Lot Line Adjustment”), pertaining to the same property. This action was stayed but not dismissed. (RJN, Exs. 1–2.)

Steer then filed a separate proceeding, *Steer v. Town of Los Gatos*, No. 24CV429584 (the “2024 Writ”), challenging the 2023 Lot Line Adjustment (No. M-23-01). The 2024 Writ expressly acknowledges that the 2023 Lot Line Adjustment revised the earlier approval. (RJN, Ex. 2, ¶¶ 3–4, 31–41.) This Department heard the 2024 Writ and, by its Order Re: Petition for Writ of Mandate entered January 17, 2025, resolved that matter, which is now pending on appeal before the Court of Appeal, Sixth Appellate District (No. H053166). In that Order, the Court observed that the prior action (this case) “challenged a different LLA (No. M-20-012) and the case was eventually stayed by the court, though it was not dismissed,” and that because